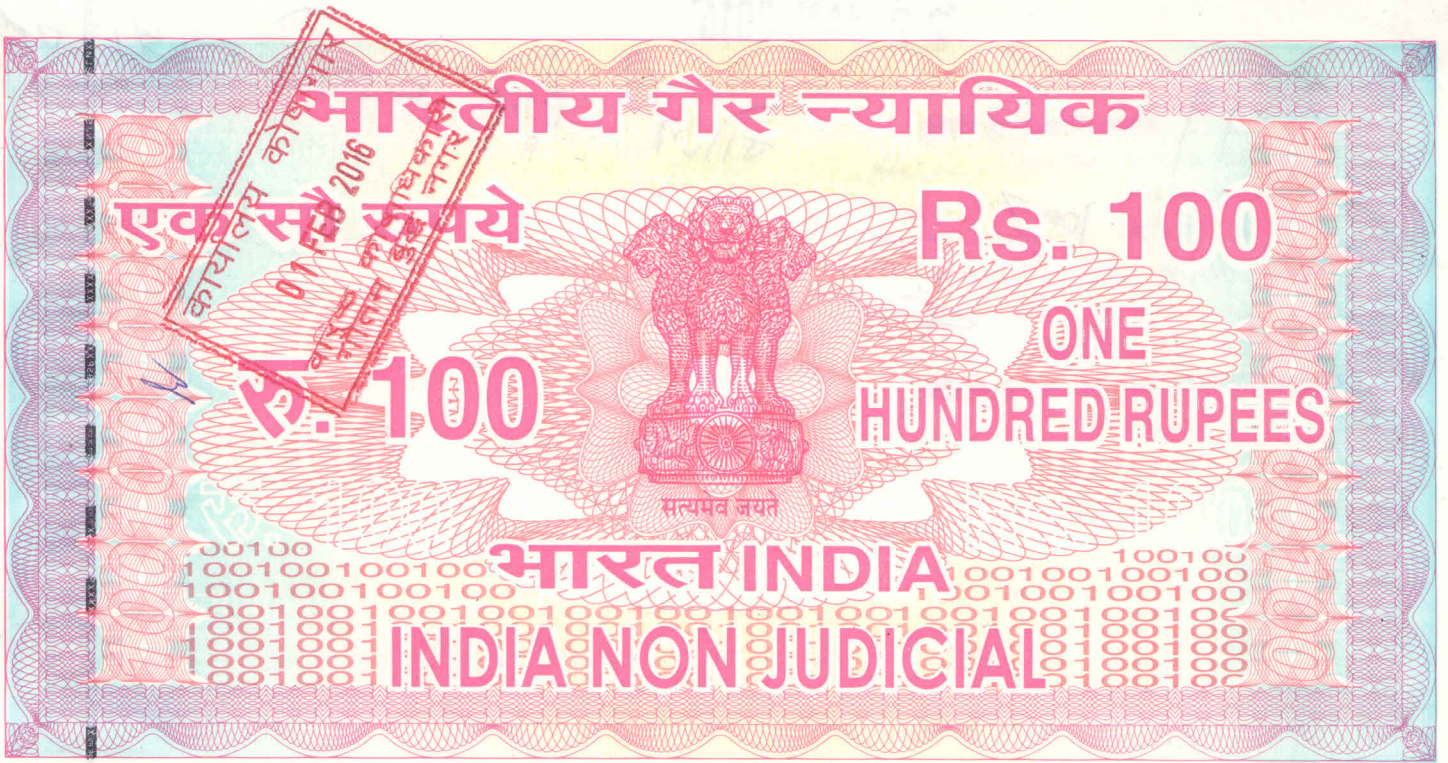




उत्तर प्रदेश UTTAR PRADESH

CW 949267

AGREEMENT

THIS AGREEMENT (the "Agreement") is made and executed at NOIDA on this 9th day of FEBRUARY, 2016 by and amongst

1. **North Shore Technologies Private Limited**, a company incorporated under the Companies Act, 1956, having its registered office at H-9, Hauz Khas, New Delhi – 110016, and its operational office and facility at Logix Techno Park, First Floor, Tower B, Plot#5, Sector-127, Noida – 201 301 (hereinafter referred to as "**NST**", which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include its respective successors and permitted assigns) of the **ONE PART**;

And

2. **New Okhla Industrial Development Authority**, registered office at Sector 6, Noida, Uttar Pradesh- 201301 (hereinafter referred to as "**NOIDA**", which expression shall, unless repugnant to the context or meaning thereof, be deemed to mean and include his/its respective successors and permitted assigns) of the **OTHER PART**.

NST and NOIDA are collectively referred to as the "**Parties**" and individually as a "**Party**".


(Sushma)
Programmer
NOIDA



WHEREAS:

- A. NOIDA had floated a request for proposal for selection of a software firm for development of Property Management Information System ("PMIS" or "PIS") vide Tender No. 01/Manager System/Computer/2015-16 read with various corrigenda issued in relation to the same thereafter ("RFP").
- B. NST is in the business of creating software and digitalization of documents. NST had bid in response to the RFP as a lead bidder. The bid/proposal has been accepted by NOIDA vide Letter No. Noida/Computer/2015/247 dated 03/11/2015.
- C. NOIDA intends to engage NST to create an integrated PMIS ("Project"), (which will help NOIDA to monitor the property related data) in accordance to the terms and conditions mentioned in this Agreement.

NOW THEREFORE, in consideration of the premises and mutual agreements and covenants contained in this Agreement, the Parties hereto, intending to be legally bound, hereby agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1. Definitions

- a) "**Applicable Law**" shall mean any statute, law, regulation, ordinance, rule, judgement, order, decree, by-law, clearance, directive, guideline, policy, requirement, or any governmental restriction or any similar form of decision of, or determination by, or any interpretation or administration having the force of law of any of the foregoing, by any governmental authority having jurisdiction over the matter in question, whether in effect as of the date of this Agreement or thereafter;
- b) "**Business Day**" means any day other than a Saturday, Sunday or any day on which banking institutions in India are closed for public dealing;
- c) "**Confidential Information**" shall include, but not be limited to but not limited to (a) Intellectual Property information; (b) trade secrets; (c) proprietary information of the disclosing Party including, without limitation, all information related to the Services, business ideas, business model, policies, manuals, designs, procedures, improvements, future plans, budgets and costings, financial analyses, competitive analyses, management information, technical data and market studies, media, techniques, sketches, drawings, algorithms, software programs, software codes, source documents and formulae, its information concerning research, financials, procurement requirements, purchasing, customer lists, investors, employees, contractual relationships, business and forecasts, sales and merchandising, marketing plans; (d) *inter se* rights and obligations of the Parties in relation to the Agreement and the Agreement itself; and (e) such other information which by its nature or the circumstances of its disclosure is confidential;
- d) "**Execution Date**" means the date of execution of this Agreement;

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- e) **"Intellectual Property"** shall include (a) copyrights and all renewals thereof; (b) trademarks, trade names, service marks, service names, trade dress, logos and corporate names, both primary and secondary, together with all goodwill associated therewith and including, without limitation, all translations, adaptations, combinations and derivations of each of the foregoing, (c) patents, trade secrets, and other confidential information (including fixed and current assets of the company, proposals, financial and accounting data, and marketing plans, customer and supplier lists and related information); (d) all other intellectual property, including but not limited to design rights, trade names, information technology, domain names; and (e) all registrations and applications for registration, extension or renewal filed anywhere in the world for each of the foregoing;
- f) **"Person"** shall mean any natural person, limited or unlimited liability company, corporation, partnership (whether limited or unlimited), proprietorship, association, government or any agency or political subdivision thereof or any other entity that may be treated as a person under Applicable Law;
- g) **"Source Code"** shall mean the original code developed by NST to create the software as a solution in response to the requirements of the RFP and under the terms of this Agreement and shall include all algorithms, lines of code, software supports etc. created or to be created by NST in order to perform the obligations under this Agreement.
- h) **"TOR"** shall mean the Terms of Reference in Section II of the RFP

1.2 Interpretation

Unless the context of this Agreement otherwise requires:

- (a) Words using the singular or plural number also include the plural or singular number, respectively;
- (b) words of any gender are deemed to include all genders;
- (c) the terms "hereof", "herein", "hereby", "hereto" and derivative or similar words refer to this entire Agreement or specified Clauses of this Agreement, as the case may be;
- (d) the term "Clause" refers to the specified Clause of this Agreement;
- (e) references to Recitals, Clauses, Annexures or Schedules are, unless the context otherwise requires, to Recitals, Clauses of, Annexures or Schedules to this Agreement.
- (f) heading and bold typeface are only for convenience and shall be ignored for the purpose of interpretation.
- (g) reference to any legislation or Applicable Law or to any provision thereof shall include references to any such Applicable Law as it may, after the date hereof, from time to time, be amended, supplemented or re-enacted, and any reference to statutory provision shall include any subordinate legislation made from time to time under that provision;




(h) reference to the word "include" shall be construed without limitation

2. SCOPE OF WORK

The detailed scope of work for development of PMIS is fully described under **Annexure I**.

3. DELIVERABLES AND TIMELINES

The deliverables and timelines of the Project are described under **Annexure II**.

4. TEAM COMPOSITION

The minimum team composition as per the Request For Proposal ("RFP") is described under **Annexure III** to this Agreement provided however that NST shall have the right and the option to change the composition of such team from time to time or engage vendors based on Project requirements and at its sole discretion.

5. PAYMENT

The payment terms and conditions are described under **Annexure IV Part B** (with reference to the quote submitted by NST during bidding in response to the RFP as reproduced in Annexure IV Part A for clarity) to this Agreement.

6. COMMENCEMENT, COMPLETION, MODIFICATION AND TERMINATION

6.1. Effectiveness of Agreement

This Agreement shall come into effect on the date the Agreement is signed by both the Parties and such other later date as discussed and agreed with NOIDA. The date the Agreement comes into effect is defined as the "**Effective Date**".

6.2. Commencement of Services

NST shall begin carrying out the services from the Effective Date or any such date as specified by NOIDA.

6.3. Modification or Variations

Any modification or variation of the terms and conditions of this Agreement, including any modification or variation of the scope of the services, may only be made by written agreement between the Parties. However, each Party shall give due consideration to any proposals for modification or variation made by the other Party.

6.4. Change Request Management

In the event any change or enhancement is sought by NOIDA with regards to the Scope of Services, and/or specifications of such Services ("**Change**"), after the execution of this Agreement, such request ("**Change Request**") must be made in writing to NST and at least 15



days 'prior to the date from when such Change needs to be initiated. The acceptance of such Change Request shall be entirely upto the discretion of NST and subject to NST and NOIDA agreeing on the terms of such Change including the number of additional mandays required by NST to implement such Change and payment for the same as per rates mutually agreed and subject to this Agreement being amended in writing to reflect the acceptance of such Change Request. Notwithstanding anything to the contrary contained in this Clause 6.4, the detailed procedure for agreement and conduct of Change Request, as detailed in **Annexure IV C** to this Agreement shall be the binding procedure for such Change Requests.

6.5. Expiration of the Agreement

Unless terminated earlier pursuant to Clause 6.6 hereof, this Agreement shall expire at the end of such time period after the Effective Date as given in the time schedule in Annexure II read with the TOR document.

6.6. Force Majeure

- (i) **"Force Majeure"** means an event which is beyond the reasonable control of a Party and which makes a Party's performance of its obligations under the Agreement impossible or so impractical as to be considered impossible under the circumstances.
- (ii) **No Breach of Agreement:** The failure of a Party to fulfil any of its obligations under the Agreement shall not be considered to be a breach of, or default under this Agreement insofar as such inability arises from an event of Force Majeure, provided that the Party affected by such an event (a) has taken all reasonable precautions, due care and reasonable alternative measures in order to carry out the terms and conditions of this Agreement, and (b) has informed the other Party as soon as possible about the occurrence of such an event.
- (iii) **Extension of Time:** Any period within which a Party shall, pursuant to this Agreement, complete any action or task, shall be extended for a period equal to the time during which such Party was unable to perform such action as a result of Force Majeure.
- (iv) **Payments:** During the period of their inability to perform the services as a result of an event of Force Majeure, NST shall be entitled to continue to be paid under the terms of this Agreement.

6.7. Termination

- a) By NOIDA

NOIDA may terminate this Agreement in case of the occurrence of any of the events specified in paragraphs (i) through (v) of this Clause 6.7a. In such an occurrence NOIDA shall give a not less than fifteen (15) days' written notice of termination to NST.).

- (i) If NST does not remedy a failure in the performance of their obligations under the Agreement, within thirty (30) days after being notified or within any further period as NOIDA may have subsequently approved in writing.



- (ii) If NST becomes insolvent or bankrupt.
- (iii) If NST, in the judgment of NOIDA has engaged in any of practices as defined in Clause 19.4 in competing for or in executing the Agreement.
- (iv) If, as the result of Force Majeure, NST is unable to perform a material portion of the services for a period of not less than thirty (30) days.
- (v) If NST fails to comply with any final decision reached as a result of arbitration proceedings pursuant to Clause 13 hereof.

b) By NST

NST may terminate the Agreement, by not less than thirty (30) days' written notice to NOIDA, such notice to be given after the occurrence of any of the events specified in paragraphs (i) through (ii) of this Clause 6.7 b

- (i) If NOIDA fails to pay any money due to the NST pursuant to the Agreement and not subject to dispute pursuant to Clause 13 hereof within forty-five (45) days after receiving written notice from the NST that such payment is overdue. If, as the result of Force Majeure, NST is unable to perform a material portion of the services for a period of not less than thirty (30) days.
- (ii) If NOIDA fails to comply with any final decision reached as a result of arbitration pursuant to Clause 13 hereof.

6.8. Payment and Penalties upon Termination

Upon Termination of the Agreement pursuant to Clauses 6.7a or 6.7b, NOIDA shall make the following payments to the NST: (a) payment pursuant to Clause 10 for services satisfactorily performed prior to the effective date of Termination; (b) except in the case of Termination pursuant to paragraphs (i) through (iii), and (v) of Clause 6.7a, reimbursement of any reasonable cost incident to the prompt and orderly termination of the Agreement.

If the Agreement is terminated on default of NST as defined in clause (i) to (iii) and (v) of Clause 6.7a, then NOIDA may encash the performance security and/or recover any charges from NST as may be deemed fit by the NOIDA.

6.9. Performance Security

The EMD of Rs.10 Lacs (Rupees Ten Lacs) deposited by NST along with the e-Bid will get converted into Performance Security which will be paid back to NST by NOIDA on completion of the project

6.10. Liquidated Damages

In case of delays beyond the total project duration of 16 months (Annexure II Phase A) plus 1 month grace time because of unassigned reasons, NOIDA may charge penalty @ of Rs.1000/- per day



7. OBLIGATIONS OF NST

7.1. General

NST shall always act, in respect of any matter relating to the Agreement or to the services, as faithful advisers to NOIDA, and shall at all times support and safeguard NOIDA's legitimate interests in any dealings with Sub-Consultants or third Parties.

7.2. Standard of Performance

NST shall perform the services and carry out their obligations hereunder with all due diligence, efficiency and economy, in accordance with generally accepted professional standards and practices, and shall observe sound management practices, and employ appropriate technology and safe and effective equipment, machinery, materials and methods.

7.3. Conflict of Interests

NST shall hold NOIDA's interests paramount, without any consideration for future work, and strictly avoid conflict with other assignments or their own corporate interests.

7.4. Prohibition of Conflicting Activities

NST shall not engage, and shall cause their Personnel as well as their Sub-Consultants and their Personnel not to engage, either directly or indirectly, in any business or professional activities which would conflict with the activities assigned to them under this Agreement.

7.5. Confidentiality

Except with the prior written consent of NOIDA, NST and the Personnel shall not at any time communicate to any person or entity any confidential information, maps, images, reports, etc. acquired in the course of the Services, nor shall NST and the Personnel make public the recommendations/solutions formulated or software created in the course of, or as a result of, the services.

7.6. Reporting Obligations

NST shall submit to NOIDA the reports and documents specified in deliverables section of TOR Document, in the form, in the numbers and within the time periods set forth in the TOR Document.

7.7. Documents Prepared by NST to be the Property of NOIDA

- (i) All designs, models, concepts, plans, reports, other documents and software/application (except its underlying Source Code and copyright and moral right vested there in upon NST) developed and submitted by NST under this Agreement shall become and remain the property of NOIDA, and NST shall, not later than upon termination or expiration of this Agreement, deliver all such documents to the NOIDA, together with a detailed



inventory thereof. All the original images should also be submitted to NOIDA.

- (ii) NST may retain a copy of such documents and software. However, for any future use of these documents, NST should take approval of NOIDA.

7.8. Accounting ,Inspection and Auditing

NST shall keep accurate and systematic accounts and records in respect of the services hereunder, in accordance with internationally accepted accounting principles and in such form and detail as will clearly identify all relevant time changes and costs, and the basis thereof.

8. NST'S PERSONNEL

8.1. Description of Personnel

NST shall employ and provide such qualified and experienced Personnel as are required to carry out the services as per the RFP.

8.2. Removal and/or Replacement of Personnel

- (i) Except as NOIDA may otherwise agree, no changes shall be made in the Key Personnel. If, for any reason beyond the reasonable control of NST, such as retirement, death, medical incapacity, resignation, under performance/ non-performance, misfeasance among others, it becomes necessary to replace any of the Key Personnel, NST shall provide as a replacement a person of equivalent or better qualifications.
- (ii) If NOIDA finds that any of the Personnel have (a) committed serious misconduct or have been charged with having committed a criminal action, or (b) have reasonable cause to be dissatisfied with the performance of any of the Personnel, then NST shall, at NOIDA's written request specifying the grounds thereof, provide as a replacement a person with qualifications and experience acceptable to NOIDA.
- (iii) NST shall have no claim for additional costs arising out of or incidental to any removal and/or replacement of Personnel.

9. OBLIGATIONS OF NOIDA

Assistance and Exemptions

NOIDA shall use its best efforts to ensure that it shall provide NST such assistance as reasonably required for the execution of the Project.

Pursuant to such best efforts and the RFP, NOIDA shall provide NST with the following:

- a. A built up space of 2500 sq.ft. (rent free) for office space out of which 2000 sq.ft. shall be used for digitisation of documents and 500 sq.ft. of space shall be used towards provision of support training and such other activities by NST
- b. Requisite furniture, fixtures and facilities like tables, chairs, electricity, plug points with power back up to be provided



- c. Appoint/assign nodal officers in various relevant departments and a single point of contact ("SPOC") on behalf of NOIDA in order to ensure smooth facilitation of all operational cooperation required at the level of NOIDA and other government offices to allow that NST is in a position to complete the Project as per timelines prescribed under this Agreement.
- d. All nodal officers and the SPOC shall be required to respond to any queries from NST or its designated officers within a maximum of two working days from receiving such query.
- e. All Project deliverables must be verified and approved or responded to by the SPOC or the relevant nodal officer or such other authorised officer within two days from the receipt of such deliverable.

10. PAYMENT TO NST

10.1. Agreement Price

The Agreement price will be payable in Indian Rupee.

10.2. Terms and Conditions of Payment

Payments will be made to the account of NST and according to the payment schedule stated in the **Annexure IV** to this Agreement. .

- 10.3.** NOIDA shall, within 30 days from the date of receipt of the invoice along with supporting documents pay to NST, the fees in accordance with key activities/milestones mentioned in this RFP

11. GOOD FAITH

The Parties undertake to act in good faith with respect to each other's rights under this Agreement and to adopt all reasonable measures to ensure the realization of the objectives of this Agreement.

12. LIABILITY

The earnest money deposit of Rs. 10 Lakhs paid to NOIDA by NST at the time of filing the e-bid will be converted into performance security under this Agreement and shall be returned to NST upon completion of the Project and prior to commencement of services under the AMC (defined in **Annexure I** to this Agreement).

13. DISPUTE RESOLUTION

13.1. Amicable Settlement

The Parties agree that the avoidance or early resolution of disputes is crucial for a smooth



execution of the Agreement and the success of the assignment. The Parties shall use their best efforts to settle amicably all disputes arising out of or in connection with this Agreement or its interpretation.

13.2. Arbitration

If the Parties are unable to resolve a dispute amicably through discussion or conciliation, the dispute may be referred to Arbitration. CEO of NOIDA Authority shall appoint the Arbitrator. In case dispute is not resolved through arbitration, the dispute can then be brought to the jurisdiction of District Courts Gautam Budh Nagar or Allahabad High Court as the case may be.

14. NUMBER OF SETS AND COPYRIGHT

- 14.1.** All the working papers with flow charts, detailed workings, reports and any other details envisaged under this Agreement shall be supplied in triplicate. All the reports will become the property of NOIDA and it will have the right to use the same anywhere else.
- 14.2.** The information gathered by selected agency cannot be issued to any other person, firm or authority. No copies of any reports or documents shall be issued to anyone except NOIDA and / or its authorized representative.

15. ABANDONMENT OF WORK

- 15.1.** If NST abandons the work for any reasons whatsoever or become incapacitated from acting as selected agency, NOIDA may make full use of all or any of the working papers prepared by NST and that NOIDA shall be liable to pay such damages as may be assessed by NOIDA subject to a maximum of 10% (Ten percent) of the total fee payable to NST under this Agreement or fees paid till time of abandonment whichever may be higher.
- 15.2.** Provided, however, that in the event of the determination of the Agreement being under proper notice as provided in the clause hereinafter, NST shall be entitled to all such fee for the services rendered and liable to refund any excess payment made to it over/and above which is due to him in accordance with the terms of this Agreement, for the service rendered by it till the date of termination of the Agreement.

16. DETERMINATION OR RECESSION OF AGREEMENT

NOIDA without any prejudice to its right against NST in respect of any delay by notice in writing absolutely determines the Agreement in any of the following cases:

- (i) If NST being a firm/company shall pass a resolution or the court shall make any order that the firm/ company shall be wound up or if a receiver or a manager on behalf of the creditor shall be appointed or if circumstances shall arise which entitle the court or creditor to appoint a receiver or a manager or which entitled the court to make up a winding order.
- (ii) If NST is in breach of any of terms of Agreement.



- (iii) When the Selected Agency has made himself liable for action under any of the cases aforesaid Authority shall have powers:
- To determine or rescind the Agreement
 - To engage another selected agency to carry out the balance work debiting the selected agency's the excess amount if any so spent

17. GENERAL

- 17.1. NST shall be fully responsible for the technical soundness of the work including those of the specialists engaged, if any and also ensure that the work is carried out in accordance with drawings, specifications and conceptual plan.
- 17.2. NOIDA will get the work of NST supervised/inspected at any time by any officer nominated by him who shall be at liberty to examine the records, check application developed.
- 17.3. NST hereby agrees that the fees to be paid as provided herein will be in full discharge of functions to be performed by it and no claim whatsoever shall be against NOIDA in respect of any proprietary rights or copyright on the part of any other party relating to the documents
- 17.4. NST shall indemnify and keep indemnified NOIDA against any such claims and against all cost and expenses paid by NOIDA in defending itself against such claims.
- 17.5. It is hereby further agreed between the Parties that the stamp duty payable under the law in respect of this Agreement shall be borne by NST.

18. NOTICES

- 18.1. Except as otherwise expressly provided herein, all notices and other communications provided for hereunder or there under shall be (i) in writing by email (and (ii) handed over in person, overnight courier (if for inland delivery) or international courier (if for overseas delivery) to a Party hereto at its address and contact number specified below, or at such other address and contact number as is designated by such Party in a written notice to the other Party hereto:

The address for service of all notices to the NST shall be:

Attention:	Mr. Ajay Kumar Zalpuri
Address:	Logix Technopark, Tower B, 1 st Floor, Sector-127, Noida-201303
Tel Number:	0120-4043400
Email:	zal@svam.com

The address for service of all notices to the NOIDA shall be:

Attention:	COMPUTER CELL
Address:	NEW OKHLA INDUSTRIAL DEVELOPMENT AUTHORITY SECTOR-6, NOIDA
Tel Number:	0120-2422083
Email:	SUSHMA.PROGRAMMER@GMAIL.COM



18.2. Any notice or communication to either Party shall be effective only on actual receipt by any such Party for whose attention the notice or communication has been expressly marked.

18.3. An original of each notice and communication sent by either of the Parties through electronic mail overnight courier (if for inland delivery) or international courier (if for overseas delivery) and, if such courier service is not available, by registered airmail (or, if for inland delivery, registered first class mail) with postage prepaid.

18.4. In case of any change of address for communication, the Party shall have the obligation to promptly notify the other Party within 48 (forty eight) hours of such change.

19. MISCELLANEOUS

19.1. Governing Law and Jurisdiction: This Agreement shall be governed by and shall be construed in accordance with the laws of India. All actions, suits, proceedings arising from or in any way connected with this Agreement or the transaction envisaged herein shall be governed by the laws of India and shall be subject to exclusive jurisdiction of courts of district Gautam Buddha Nagar, India and High Court of Allahabad.

19.2. Authorised Representatives: Any action required or permitted to be taken, and any document required or permitted to be executed under these standard terms by NOIDA or NST may be taken or executed by the officials as formally designated by each party as on the Effective Date of the Project.

19.3. Taxes and Duties: NST and their personnel shall pay such direct and indirect taxes, duties, fees, and other impositions levied by the Government of India, state government or local authority, the amount of which is deemed to have been included in the Agreement price. Notwithstanding the contents of this sub clause, any change in taxation since the date of bidding, which may be onerous to NST, shall be borne by NOIDA irrespective of such change being brought about by the central, state or local authorities.

19.4. Fraud and Corruption:

- (i) "corrupt practice" means the offering, receiving, or soliciting, directly or indirectly, of anything of value to influence the action of a public official in the selection process or in contract execution;
- (ii) "fraudulent practice" means a misrepresentation or omission of facts in order to influence a selection process or the execution of a contract;
- (iii) "collusive practices" means a scheme or arrangement between NST, with or without the knowledge of NOIDA, designed to establish prices at artificial, non- competitive levels;
- (iv) "coercive practices" means harming or threatening to harm, directly or indirectly, persons or their property to influence their participation in a procurement process, or affect the execution of a contract;

19.5. Measures to be taken: NOIDA will cancel the NST's engagement, if it is engaged in corrupt,



fraudulent, collusive or coercive practices during the execution of this Agreement.

- 19.6. No Assignment: The obligations of the NST under this Agreement shall not be assigned or transferred to any third party without the prior written consent of NOIDA.
- 19.7. Relationship of Parties: Nothing contained in this Agreement shall be constituted to mean or cause the NST to be an agent or legal representative of NOIDA, for any purpose whatsoever. NST is not granted any right or authority to assume or to create any obligation or responsibility, express or implied, on behalf or in the name of NOIDA or to bind NOIDA in any manner whatsoever. No joint venture or partnership between the Parties is intended or shall be inferred.
- 19.8. Severability: If any provision of this Agreement shall be held to be illegal, invalid or unenforceable, in whole or in part, under any enactment or Applicable Law, such provision or part shall to that extent be deemed not to form part of this Agreement, and the legality and enforceability of the remainder of this Agreement shall not be affected. The Parties shall negotiate and replace the severed provision by such other provisions as may be mutually agreed by the Parties, in compliance with Applicable Laws.
- 19.9. Partial Invalidity: If, at any time, any provision of this Agreement is or becomes illegal, invalid or unenforceable in any respect under any law of any jurisdiction, neither the legality, validity or enforceability of the remaining provisions nor the legality, validity or enforceability of such provision under the law of any other jurisdiction will in any way be affected or impaired.
- 19.10. Amendment: No modification or claimed waiver of any provision of this Agreement shall be valid except by written amendment signed by authorized representatives of the Parties.
- 19.11. Entire Agreement: This Agreement constitutes the entire agreement of the parties and supersedes all prior communications, understandings and agreements relating to the subject matter hereof, whether oral or written.

IN WITNESS WHEREOF, the Parties hereto have caused this Agreement to be executed and acknowledged by their respective officers or representatives hereunto duly authorized, as at the place and of the date first above written.

For North Shore Technologies

Name: Ajay Kumar Zalpuri

Signature: 



Witnesses:

1. Vishal Shukla 

2. Taraknath Chakraborty 

For NOIDA:

Name: Sushma

Signature: 

(Sushma)
Programmer
NOIDA

Witnesses:

1. RUBY 

2.

Annexure I

Scope of Work

The selected Bidder is expected to provide (but not limited to) following services:

During the design and requirement finalisation stage detailed data gathering template shall be prepared for each department in consultation with department heads which shall be approved before any data entry/collection stage commences.

Build a Web Enabled Integrated Property Information System (PIS) to reflect:

1. The category of property i.e. Residential, Industrial, Institutional and Commercial.

For Residential properties,

- a. The PIS should further categorise Residential Properties into Group Housing, Built up and Residential Plot.
- b. The PIS should display whether completion certificate is received by allottee related to the property or not.
- c. Whether the Lease Deed is executed for such property or not. If not, then reason should be mentioned
- d. Whether Authority has given permission to Mortgage the property or not. If yes then whether Mortgage is allowed for construction of such property or for Business Loan
- e. Details related to transfer of the property i.e. Transfer charges to be applied on the transfer of property etc.
- f. The PIS shall should display Accounts related details such as payment history, dues outstanding among other details.

For other properties

2. In addition to above, whether the properties are functional or not. The property shall be meant to be functional if the property is being used for the same purpose for which it has been allotted. In order to be functional, the property owners need to obtain certificates from respective organisations e.g. Industrial – SSI, commercial – shop establishment, Institutional– depends on type of property i.e. school – NCERT, CBSE, hospital – CMO etc.

The PIS should be able to display following information:

3. Status of the property i.e. whether property is allotted and lease deed executed, possession handed over, allotted on rent, functional, etc.



4. Area and location of the property
5. The name and details of the owner of the property as required by the Authority
6. Payment history i.e. details of payments due and made, payments due but not made. This exercise need not be done for properties for which the 'No Dues Certificate' has been issued.
7. The PIS should be able to levy interest and penalties on the unpaid amount as per the terms laid down by the Noida Authority
8. Payment schedule i.e. future payments due dates and amount
9. The PIS should be able to send email and message (for the amounts due but not paid) to the owners of the property
10. The PIS should be also be able to generate reports for the unpaid amounts
11. The PIS shall integrate JAL payments due and receipts, complaints/enquiry status from citizen's charter and legal cases. The PIS should be such that it facilitates the Integration, correlation and synchronization of Information relating to properties across different departments at Noida including the Current Facilities management System, the payments and Receivable System, JAL (Water Billing) and Citizen's Charter and thus facilitating compliance across various departments of Noida. The scope of PMIS, pertaining to Citizen's Charter, will be limited to display of information provided by the existing Citizen Charter portal.
12. The PIS should integrate with payment gateway and should allow the property owners to make payment of installment due through the Portal.
13. The PIS should generate various types of dashboards/trends/reports with drill down information to enable Noida Authority officials to take data based decisions to ensure compliance. The reports should be dynamic and not static. The PIS should be able to generate any type of report/dashboard as per the requirement of the Authority.
14. The user interface of the PIS should be such that the Noida Authority officials may search any property through various means e.g. owner name, property ID, property address etc. The PIS should also provide option to find details of any property by clicking on the sector layout maps loaded on the system. The said layout maps with accurate Latitude-Longitude information of the location of the Sector and Latitude-Longitude information of individual plots are to be provided by NOIDA.
15. The PIS shall allow the Noida citizens to view all their relevant property details with integrated information e.g. Jal payments etc.
16. The PIS should allow the citizens to register query/ complaints related to their properties. The PIS shall also provide the Noida citizens easy tracking of the filed query/complaints
17. The PIS should enable citizens to make online payments due from them through the portal. In case of any delayed payment, the system should levy penalty/interest and provide the amount due



18. The PIS should send SMS/email alerts two times i.e. One month before any payment to Noida Authority is due and 15 days before any payment to Noida Authority is due, subject to availability of mobile phone number and/or e-mail IDs to be provided by NOIDA.

Digitization of hard copy documents of all properties

19. The selected agency should digitize all the hard copies of the documents. The PIS should be enabled to provide viewing of digitized documents such as:
- Filled in Property Scheme form
 - Allotment Letter
 - Possession Letter
 - Lease Deed
 - Transfer Deed
 - Mutation Deed
 - Completion Certificate
 - Any other document as required by the Authority

For the purposes of digitization of each property, it is estimated that each property digitization will require 25 nos. of two sided A4 sheets/ legal size sheets. However, it is expressly understood that in actual operation this number may vary greatly and payments for digitization shall be made on actual and not on such approximated estimates. Further it is agreed that any digitization required to be done after completion of the Project and during the duration of the AMC shall be done at costs agreed separately for the AMC.

20. The digitization shall typically involve:

- Setting up the scanning center in NOIDA premises with advanced scanning machines for A4/Legal papers.
- The selected firm will collect the hard copies of the documents from the Authority's relevant property department
- Scanning of the collected documents (200 Dpi or higher)
- Indexing of documents linked to property ID
- Storage of scanned documents
- Enable Retrieval of scanned documents linked with property ID
- Returning of the hard copy documents back to Authority's relevant department



with acknowledgement

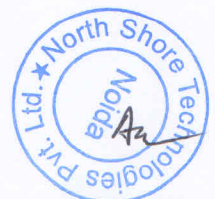
Validate and verify consolidated data relating to all properties and capture relevant data from physical files that is missing from current web builder database

21. This shall involve going through the database of all properties
22. Carry out check on 100% of properties in each type to validate and verify data between the physical file and the web builder database
23. In case if data related to a property is completely missing, i.e. no file is created in the web- builder database related to the property, then file needs to be created and data updated as per the details of the property in the Physical file.
24. In case any information is missing, the same needs to be updated in the database.
25. In case of any deviation in information between physical file and web builder database, then co-ordinate with the Nodal officer of the relevant department and update correct data in database after fulfilling relevant procedure set up by the Authority
26. Any creation, updation/change of data in the web builder database shall be done only after approval of the Nodal Officer appointed for the relevant department. The Selected agency needs to follow relevant procedure set up by Authority and take permissions before making any changes in the web builder.

Build a web Property Management Information System (PMS) replacing the existing system made with Power Builder platform for Housing, Residential, Industrial, Institutional, Commercial, and Group Housing

Complete Web based Application Package with all functionalities:

27. Web based module for entering/maintaining (approximately 96 thousand) properties
28. Module for Property Scheme, Application data processing and draw (Online/Offline) and property data processing for each new property
29. Generation of allotment letter and financial as well as non-financial ledger for each allottee for each new property
30. Generation of Payments Plans, demand letter/reminder along with tracking details of changes/correspondence
31. Integration with Bank gateway for allottees to make online payment
32. Generation of various types of letters/reports such as:
 - TM letter
 - Mutation letter



- Mortgage letter
 - Functional letter
 - CIC
 - Rent report
 - Possession letter
 - No Dues Certificate
 - Extension letter
 - Succession letter
33. Provision of keeping copies of records in PDF formats reports generated and their logs
 34. Reports to be generated at department level
 35. SMS/Email/letter as required
 36. Provision of online viewing of financial and non-financial ledger of respective allottee and their payment
 37. Integration and Synchronization with Payment and Receipt System Software at Central Account Department
 38. Integration and synchronization with Noida Citizen Charter Software
 39. Uploading and viewing of maps and data for all allotted properties. The inputs need to be taken from CAP Department of Noida Authority
 40. Functionalities to capture legal issues pending in different types of courts. The inputs need to be taken from Legal department of Noida Authority.

A detailed Standard operating procedure (SOP) shall be prepared in consultation with Noida Authority which shall be used for new properties/change in existing data going forward for capturing and processing all property related information by departments of NOIDA.

Provide onsite training support to all the relevant departments of Noida Authority based on New Property Management System

41. Training sessions need to be organized for each department which has a role to play in proper functioning of this system.

Provide handholding to Noida Authority after go live in addressing post production problems until stabilization (6 months post production)

42. 8 hrs X 5 days support onsite
43. 8 hrs – 6th and 7th day support offsite as per the discretion of the Authority
44. 24 hrs TAT maximum for Severity 1 issue



45. 72 hrs TAT max for Severity 2/3 issues

Maintain and support the application on an Annual Maintenance Contract ("AMC") basis subject to agreed Service Level Agreements for a period of two years from the completion of the Project.

All the requirement pertaining to hardware/servers/storage and any other equipment's related to this Project shall be submitted by selected agency as part of their scope. Agency shall assist Authority in preparation of estimates and procurement process as deemed appropriate by Authority. The cost of all hardware shall be directly borne by Authority.



Annexure II

DELIVERABLES AND TIMELINES:

The entire project is expected to be carried out as per the following timelines:

Phase A	Estimated Duration
Design and requirement finalization approved by Authority	1 month
Existing Database updation (updation of existing web builder database as per the details of property mentioned in physical file) and digitization of all hard copy documents	5 months
Combining updated database of all departments i.e. Jal, FMS, Central A/c System among others.	1 month
Development and implementation of Information System	2 months
Testing of the implemented Information System/preparation of SOPs	1 month
Training and onsite support to all departments	6 months
Total	16 months
Phase B	
AMC onsite support for 2 years (based on attendance basis)	2 years



Annexure III

TEAM COMPOSITION

Minimum skill set of team composition required for development of Information System

Role	Relevant Experience	Qualification	Number
Project Manager (Team Leader)*	15years	M.Tech./MCA in Computer Science with any of the graduation degrees-B. Tech/BSC/BCA with experience of working on land/property development system	1
Business Analyst*	4-7Years	B. Tech/MCA and MBA with similar experience	2
Developer	5-10years	B.Tech/MCA with similar experience	5
Software Tester	5-10years	B.Tech/MCA with similar experience	2

Minimum skill set of team composition required for Digitization of documents

Role	Relevant Experience	Qualification	Number
Document Handler*	2-3years	Graduate	2
Scanning and Indexing*	2-3years	Graduate	2
Quality Assurance*	5years	Graduate with Diploma in Computers	1

Data Validation and correction

Role	Relevant Experience	Qualification	Number
Supervisor/Domain Expert*	Relevant experience in any government organization	Graduate	1
Data Entry Operators*	3years	Graduate with Diploma in computers	2

Onsite support/AMC stage

Role	Relevant Experience	Qualification	Number
Supervisor^	5yearsofsimilarexperience	B.Tech/MCA with similar experience Graduate	1
Onsite Engineer^	3yearsofsimilarexperience	Graduate with Diploma in computers	3

*Following experts shall be required to be based out of Noida Authority premises for the entire duration of development. Authority shall provide functional space w/o any computers/IT equipments.

^During Onsite support and AMC stage to be based out of Noida Authority premises




Annexure IV

Part A Price Quoted by NST during Bid

S. no.	Description	Qty.	Rate	Total
1	Lump sum fees for data entry/application development (all scope as per RFP except B and C)	1	2,27,00,000	2,27,00,000
2	Scanning/digitization phase per side per page (Assumed to be 50 side/25 pages per property) along with the relevant Document Management System for indexing and other features	48,00,000	1.49	71,52,000
3	AMC for 2 year/24 months	1	1,00,00,000	1,00,00,000
	Total in Figures			3,98,52,000
	Total in Words	Three Crore Ninety Eight Lakh Fifty Two Thousand Only		

Part B

PAYMENT TERMS

The payment milestone for each of the services in the scope of work will be in the following stages consistent with the work approved by Noida Authority in writing and percentages mentioned herein are in reference to the Quote in Part A of this Annexure and are result of approximations subject to changes and variations in actual and shall be paid as per approvals of the deliverables and invoices raised by NST therein.

S.No.	Key Activities/ Milestones	Payment % of Phase A as per Part A
1	Design and requirement finalization	10%
2	Existing Database updation (updation /data entry of existing web builder database as per the details of property mentioned in physical file) and digitization of all hard copy documents	30% (to be paid in instalments based on completion from departments)
3	Combining updated database of all departments i.e. Jal, FMS, Central A/c System etc.	5%

(Sushma)
Programmer
NOIDA

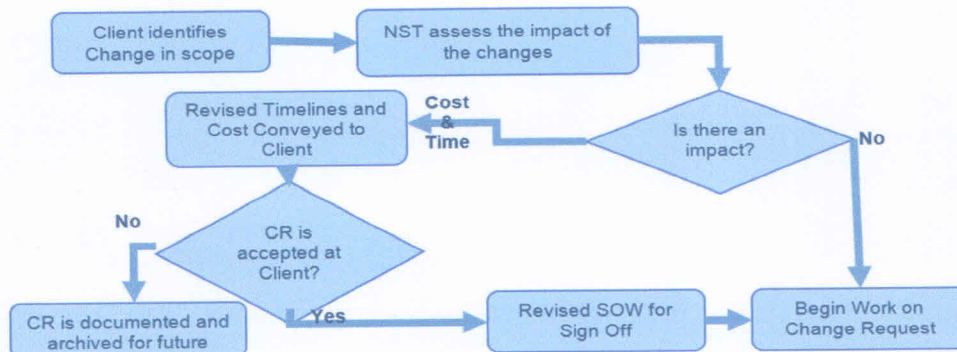


4	Development and implementation of Information System	20%
5	Testing of the implemented Information System Department wise (4.1666% for each department, total 6 property departments)	25%
6	Onsite Support and training to all the departments	10%
7	AMC for 2 years	On monthly basis for phase B payment

Part C

Change Management Process

This tender would be subject to the following change management process and describes the circumstances under which a Change Request (CR) could be raised, worked upon by NST.




(Sushma)
Programmer
NOIDA

